

File No.: EXP202100764

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 26, 2021, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against COMUNIDAD PROPIETARIOS B.B.B. with NIF ***NIF.1 (hereinafter, the Community). The reasons for the complaint are as follows:

The claimant alleges that the Community, to which the claimant belongs, displays on the locked notice board located in a common area, at the entrance of the building next to the elevator, an Enforcement Order of Judicial Titles that includes the claimant's personal data (name and surname).

Furthermore, it is reported that the Community was subject to a warning procedure for the same reason in 2018.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the Community for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on August 10, 2021, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means. This postal notification was returned for not being collected at the post office on September 13, 2021, after two notification attempts at the address on different days and times.

The forwarding was reiterated by the same means, and notification was made on October 11, 2021.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/11

No response has been received to this forwarding letter.

THIRD: On December 2, 2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

Facts according to the statements of the claimant:

The complained Community, to which the claimant belongs, has displayed on the notice board located in a common area (at the entrance of the building next to the elevator) an Enforcement Order of Judicial Titles that includes the name and surname of the claimant. The display is alleged to have occurred "at least" since May 17, 2021, without, according to the claimant, having been removed or anonymized as of the date of the complaint (July 26, 2021) "despite the clear warning stated in the document itself: 'the dissemination of non-anonymized Judicial documents will be contrary to the

Laws'."

The claimant states that on November 24, 2017, they already filed a complaint against the Community before the AEPD for facts of the same nature. This was processed under procedure A/00001/2018 with a result of warning (R/00601/2018) for infringement (Article 44.3.d of Organic Law 15/1999) and a requirement for the removal of the improperly exposed information.

The claimant adds that the actions of the Community cause them harm as, on one hand, it informs third parties not interested about their place of residence, and on the other hand, it links them to a judicial procedure whose publicity is unjustified, putting their personal data at risk. Furthermore, it indicates that the purpose of such publication of their personal data is unclear.

Relevant documentation provided by the claimant:

- Copy of the enforcement order of judicial titles dated May 12, 2021, in which the claimant (name and surname) and the Community are listed as parties involved. The side of the order contains a warning text against dissemination to uninterested parties without prior dissociation of personal data.

Additionally, the dispositive part includes the text: "Approve in XX.XXX,XX euros the cost of the execution referred to in this order."

- Photographs of the entrance showing the aforementioned order hanging on the notice board located between the stairs and the elevator.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/11

-

Copy of resolution R/00601/2018 from procedure A/00001/2018.

Date on which the claimed events took place: May 17, 2021

The background information recorded in the information systems is as follows:

-

In the information system of the AEPD, there is a prior complaint filed by the complainant against the Community (registration number 370647/2017) managed within the framework of procedure A/00001/2018. This procedure concluded with a warning to the Community along with a requirement for the removal of the document displayed on the notice board that is the subject of controversy (R/00601/2018, included in the present proceedings).

Additionally, information is gathered from the following sources:

-

Written communication from the Community registered with the AEPD on February 22, 2022, with number O00007128e2200008332 (hereinafter Written#1).

-

Guide "Data Protection and Property Management" from the AEPD downloaded from its website.

The Community states in Written#1 that on October 13, 2021, it proceeded to remove the document displayed on the notice board that is the subject of the complaint. In light of the removal, it requests the filing of the proceedings or, subsidiarily, a warning sanction. It attaches to the written communication a photograph of an empty notice board.

The guide "Data Protection and Property Management" from the AEPD includes the following text in section eight:

"Can personal data be published on the notice board of the homeowners' association?"

The cases in which the display of personal data related to matters arising from the management of the community is authorized are specified in Article 9.h) of the LPH.

The notice board should not be placed in a location that is easily accessible to any person."

FIFTH: On October 21, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the party being complained about, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.4 of the GDPR and Article 83.5 of the GDPR.

The initiation agreement was electronically notified to the Community. This is required by Article 14.2

of Law 39/2015 on Common Administrative Procedure of Public Administrations (LPACAP), according to which “In any case, the following subjects shall be obliged to communicate electronically with Public Administrations for the completion of any procedure of an administrative process: a) Legal persons.” There is a Certificate in the file issued by the Electronic Notification and Authorized Electronic Address Service of the FNMT-RCM, which records the sending of the initiation agreement, notification from the AEPD addressed to the Community, through that means, with the date of availability in the electronic headquarters of the agency being October 21, 2022, and the date of automatic rejection being November 11, 2022.

Article 43.2 of the LPACAP establishes that when notification by electronic means is mandatory -as is the case here- “it shall be understood as rejected when ten calendar days have passed since the notification was made available without access to its content.” (The underlining is from the AEPD). It should be added that Articles 41.5 and 41.1, third paragraph, of the LPACAP establish, respectively, that:

When the interested party or their representative rejects the notification of an administrative action, it shall be recorded in the file specifying the circumstances of the notification attempt and the means used, considering the procedure completed and continuing with the process. (The underlining is from the AEPD)

Regardless of the means used, notifications shall be valid as long as they allow for proof of their sending or availability, of the receipt or access by the interested party or their representative, of their dates and times, of the complete content, and of the reliable identity of the sender and recipient. The proof of the notifications made shall be incorporated into the file.

Additionally, and as a complement to the electronic notification, a copy was sent by postal mail. This postal notification was returned for not being collected at the post office on November 8, 2022, after two notification attempts at the address on different days and times, as recorded in the Certificate issued by Correos and included in the file.

SIXTH: Article 73.1 of the LPCAP determines that the deadline for submitting allegations to the Initiation Agreement is ten days counted from the day following the notification.

Article 64.2.f) of the LPACAP -a provision of which the complained party was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated time regarding the content of the initiation agreement, it may be considered a proposal for resolution when it contains a precise statement regarding the responsibility attributed. (The underlining is from the AEPD). In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations to the initiation agreement of the file and

5/11

In accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in this case.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The Community has displayed a Decree for the Execution of Judicial Titles on the notice board located in a common area easily accessible to anyone (at the entrance of the building next to the elevator), which includes the personal data of the complainant (name and surname and information about a judicial process) and the Community as interveners. It has been published at least from May 17, 2021, until October 13, 2021, the date on which the Community claims to have removed it. On the side of the Decree, there is a notice text stating that it should not be disseminated to uninterested parties without prior dissociation of personal data. Furthermore, the dispositive part includes the text: “Approve the cost of XX.XXX,XX euros related to this execution.”

SECOND: There is a prior complaint in the information system of the AEPD by the complainant against the Community, managed within the framework of procedure A/00001/2018. This procedure concluded with a warning resolution to the Community along with a requirement to withdraw the document

displayed on the notice board in question (R/00601/2018).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, as the Community carries out, among other treatments, the collection, registration, organization, storage, modification, consultation, use, and deletion of the following personal data of individuals, such as: name, surname, address, identification number, phone number, etc.

The Community carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter security breach) as “all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach since the personal data of the complainant was exposed on a notice board in a common area, specifically in the access portal of the Community of Owners, between the stairs and the elevator, thus visible to anyone accessing it and not only to the neighbors.

It should be noted that the identification of a security breach does not directly imply the imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied.

Among the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR. Meanwhile, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern the security of processing, the notification of a personal data security breach to the control authority, and the communication to the data subject, respectively.

III

Article 5.1.f) of the GDPR

Article 5.1.f) “Principles relating to processing” of the GDPR states:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures (‘integrity and confidentiality’).”

7/11

In the present case, it is established that the personal data of the claimant (name, surname, and information about a judicial process) were improperly exposed by the Community to third parties, as they appeared in a Decree of Execution of Judicial Titles that was placed by said Community on a notice board, locked, located at the entrance of the building (between the stairs and the elevator), a

place through which any person can pass, whether or not they are the owner of the property, thus being a publicly accessible area, which constitutes unauthorized access to said data. This document was displayed from May 17, 2021, to October 13, 2021.

Article 9.h) of the Horizontal Property Law indicates as an obligation of the owner to “Communicate to whoever performs the functions of Secretary of the community, by any means that allows for proof of receipt, the address in Spain for the purposes of summons and notifications of all kinds related to the community. In the absence of this communication, the address for summons and notifications shall be considered to be the apartment or premises belonging to the community, with full legal effects for those delivered to the occupant thereof.

If a summons or notification to the owner is impossible to carry out at the place provided in the previous paragraph, it shall be understood as having been made by placing the corresponding communication on the community's notice board, or in a visible place of general use designated for this purpose, with diligence expressing the date and reasons for proceeding with this form of notification, signed by whoever performs the functions of Secretary of the community, with the approval of the President. The notification made in this manner will produce full legal effects within three calendar days.”

In the present case, the exposure of the claimant's data on the community's notice board does not comply with the assumptions set forth in the Horizontal Property Law.

In accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to the Community, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

The infringement of Article 5.1.f) of the GDPR entails the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/11

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

V

Sanction for the infringement of Article 5.1.f) of the GDPR

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for the imposition of a sanction of €1,000 (one thousand euros).

VI

Article 32 of the GDPR

Article 32 “Security of processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/11

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data following the instructions of the controller, unless required to do so by Union or Member State law.

In the present case, at the time the breach occurred, it cannot be asserted that the respondent had appropriate measures in place to prevent the incident, as it published the personal data of the complainant on a notice board in an area easily accessible by anyone (in the access portal, between the stairs and the elevator) of the Community building, having also been warned by this Agency in a previous procedure for similar facts, which highlights that it has not adopted adequate technical and organizational measures to prevent further security incidents like the one that occurred.

In accordance with the available evidence, it is considered that the known facts constitute an infringement attributable to the Community for violation of Article 32 of the GDPR.

VII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

10/11

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

VIII

Sanction for the infringement of Article 32 of the GDPR

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for the imposition of a sanction of 500 € (five hundred euros).

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on COMMUNITY OF PROPERTY OWNERS B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, a fine of ONE THOUSAND EUROS (1,000 euros).

SECOND: TO IMPOSE on COMMUNITY OF PROPERTY OWNERS B.B.B., with NIF ***NIF.1, for an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, a fine of FIVE HUNDRED EUROS (500 euros).

THIRD: TO NOTIFY this resolution to COMMUNITY OF PROPERTY OWNERS B.B.B.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no. IBAN:

ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Data Protection Agency at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

11/11

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es